



Lamborghini Club UK

Rules & Constitution

Effective from April 30th, 2022

1 - CLUB NAME AND CONSTITUTION

- a) The Club shall be hereafter referred to as "Lamborghini Club UK" or "LCUK".
- b) Members shall be supplied with a copy of the Lamborghini Club UK Rules & Constitution together with the Code of Conduct upon joining the Club. Copies of these documents will also be available on request but will be downloadable from the members section of the LC UK web site.
- c) Amendments to this Constitution can only be made by a majority vote.
- d) Any proposed amendment must appear in the agenda for a Committee meeting and be agreed by majority before seeking the membership vote.

2 - AIMS AND OBJECTIVES

The aims and objectives of the Club include the following:

- a) To encourage and develop interest in ownership of all Lamborghini cars and Automobili Lamborghini SpA.
- b) To provide Members with information, advice and assistance on matters concerning their cars.
- c) To provide Members with as many benefits and privileges as it may be possible to arrange.
- d) To act as ambassadors to the general public, via car shows, coordinated runs and events, Members only events and participation in events organised by third parties, to foster interest in Lamborghini.
- e) To organise Club meetings to encourage Club Members to meet and discuss their cars and any other matter in a relaxed and social environment.

3 - MEMBERSHIP

- a) Anyone, whether a Lamborghini owner or otherwise, shall be eligible for Membership, upon the payment of the annual subscription, which will be valid for all or part of one calendar year, the precise arrangements for which will be interpreted to suit any given situation and eventuality by elected or co-opted Committee members.
- b) Individual Membership will entitle an individual to single mailings of the Club Magazine (and any other publication created by LCUK) and one vote upon payment of a single annual subscription. However, family, friends or acquaintances of each individual Member can participate in Member only activities. One Membership card will be issued per Member.
- c) There shall be no minimum or upper age limit on Membership.
- d) Members must be in good standing and 16 years old and over to vote.
- e) Any Membership card issued to a Member to denote Membership of Lamborghini Club UK shall remain the property of the Club. On termination of their Membership, Members shall return the card to the Membership Secretary.
- f) The names and addresses of the Club and its Members shall not be given out for trade, advertising or business purposes or in connection with any legal proceedings without the prior permission of the Member and the Committee.
- g) All personal information provided to Lamborghini Club UK, by Members and prospective Members, will be used for the sole purpose of administering LCUK business and will be used in accordance with the General Data Protection Regulations, 2018.
- h) Any honorary membership will be valid for one year and members shall not be eligible to vote.
- i) All members will be expected to comply with the Code of Conduct.
- j) All members are required to ensure that their personal details are correct as shown in the membership section of the LC UK web site.

4 - MEMBERSHIP FEES

- a) Changes to the annual membership fees can only be made by a majority vote.
- b) Junior membership rates will cease to apply after the Member's sixteenth birthday.
- c) Membership fees are renewable annually.
- d) The maximum time that will be allowed to elapse from due date of renewal will not exceed 3 months.
- e) Any Member of LCUK who has not paid his/her Membership fee by that time will have his/her details removed from LCUK mailing lists and other contact systems.
- f) Any Member wishing to resign his/her Membership can do so by notifying the Membership Secretary and/or any member of the LCUK Committee. There will be no refund of Membership fees of less than 9 months value.

5 - EXPULSION OF MEMBERS

- a) Where circumstances dictate, the Committee shall decide upon the possible expulsion of a Club Member. Members of the Committee shall be given at least seven days' notice that a question of expulsion is to be discussed at a meeting of the Committee.
- b) The Member whose expulsion is under consideration shall be given the same seven days' notice before the meeting and shall be allowed to explain his/her conduct orally or in writing.
- c) The Committee members shall then vote for/against his/her expulsion. He/she shall thereupon cease to be a Member of the Club if the majority of the Committee votes for expulsion. In the event of expulsion, the expelled Member shall be entitled to a refund of any Membership fees paid in respect of any period after the date of expulsion.
- d) The expelled Member may submit an appeal against expulsion. The appeal will be considered at the subsequent general meeting of the club.

- e) The expelled Member will not be entitled to any membership fee refund.
- f) The expelled Member will be entitled to reapply for Membership 12 months after the initial expulsion.

6 - MANAGEMENT OF THE CLUB

- a) Authority and responsibility for the business of the Club shall be vested in the LCUK Committee elected on a majority vote.
- b) The LCUK Committee shall consist of as many elected members as the membership sees fit to elect and will share the responsibility of organising the running and activities of LCUK.
- c) The two-stage voting process for the election of the Committee shall commence in the first quarter of the new year and be carried out mainly online with a postal alternative where required.

7 - COMMITTEE ROLES

- a) The specific roles of Committee Chair, Membership Secretary, Treasurer, Event Coordinator(s), Webmaster, Commercial Officer, Publisher and General Secretary(s) shall be confirmed by the elected Committee after voting results have been announced. Other roles and duties can be delegated when required. Committee members shall not be entitled to any remuneration from the Club but shall be reimbursed their reasonable expenses in relation to fulfilling their duties.
- b) The Committee can co-opt, from the existing Membership, anyone with special expertise as and when required. These co-opted Members will NOT have Committee voting rights unless agreed by the standing Committee.
- c) It shall be the duty of the Committee, under the control of the Committee Chair, to conduct orderly meetings, act as a primary contact for the Club on occasion, encourage Club ideas, encourage Club membership, and ensure all Committee members carry out their prescribed duties as set forth in this section of the Constitution.
- d) It shall be the duty of the Committee Chair to conduct orderly meetings and ensure that the business of the Club is dealt with at all times. It will also be the duty of the Committee Chair to schedule regular Committee meetings, in whatever format and in or at whichever location is agreed as being suitable for all Committee members.
- e) It shall be the duty of the Membership Secretary to assist the IT/Webmaster to maintain an up-to-date register of current Memberships and encourage Membership renewals when required.
- f) It shall be the duty of the Membership Administrator to assist the IT/Webmaster to maintain an up-to-date register of current Memberships and administer the process for Membership renewals.
- g) It shall be the duty of the Club Treasurer to handle all money matters of the Club, keep a record of all expenditures and advise the Committee and Club of all financial matters.
- h) It shall be the duty of the Events Coordinator (s) to coordinate as many Lamborghini activities as possible and bring them to the attention of the Club Members to maximise interest. If there is enough interest in an event, the Events Coordinator (s) may delegate all or some of the responsibility for organising an event to a willing Member or Members to take care of all the details in order to deliver a successful event. The Event Coordinator (s) will ensure that a monthly email communication is sent out detailing all current and next month events together with any other relevant information deemed as necessary and ensure that the Webmaster and the Publisher have access to images and reports of events.
- i) A monthly email communication shall be sent out detailing all current and next month events together with any other relevant information as deemed necessary.
- j) It shall be the duty of the IT/Webmaster to update the LCUK website with photos, news, links, etc. as events are planned and take place and maintain the website in a manner that ensures it is as up to date and secure as possible at all times. When required, assist with the voting process.
- k) It shall be the duty of the Publisher to generate the Club's magazine and other printed matter as required and edit supplied information and images as is deemed suitable and to facilitate requests from external publications regarding the Club.
- l) It shall be the duty of the General Secretary to assist other Committee members whenever necessary, provide assistance, support to all LCUK Members whenever required if at all possible and ensures that the Club maintains records as required legally and otherwise.
- m) It shall be the duty of the Commercial Officer to seek out and develop new commercial relationships. Additionally, the role will be required to resolve contract and commercial issues between partners and the Club.
- n) All the office bearers can call on Members to assist with these duties as required.
- o) The Committee shall ensure that the Club's website and publications shall be renewed and produced regularly and reflect the past, current and future activities of the Club. The preparation and production of the Club's website and publications can be delegated to Members with the necessary expertise if required.
- p) Members may submit matters to the Committee for discussion. These issues can be submitted in writing, either by post or email to Committee members either via general emails or to individual Committee members. These submissions shall not be passed to anyone outside the Committee without the full approval of the Committee.
- q) Any member of the Committee may be removed from office with immediate effect (and without any entitlement to compensation) if all the other members of the Committee so agree.

8 - BANKING

- a) Under the supervision of the Treasurer, all monies of the Club shall be banked in an account in the name of the Club and no withdrawals or payments shall be made from this account unless initially authorised by the Club Committee or with the general agreement of the Committee having been granted to the Treasurer to do so as required, at the Treasurers discretion.
- b) All cheques and payments will require the signature of the Treasurer of the Club or the signature of a nominated Committee member in any extended absence of the Treasurer.

9 - GENERAL MEETINGS

- a) A General Meeting (GM) of the club shall be held upon a date and at a time to be fixed by the Committee.
- b) All members of the Club will be notified of the time, date and location of the meeting no later than 14 days prior to the meeting.

- c) General Meetings will be held once every calendar year if needed or at suitable times as required. The quorum for any General Meeting shall be two members. If at any General Meeting a quorum is not present within half an hour from the time appointed therefor, or, alternatively, a quorum ceases to be present, the Meeting shall be dissolved.
- d) The Committee Chair will run the meeting. During the General Meeting:
- e) The Treasurer shall provide a full statement of accounts showing the receipts and expenditure for the previous year.
- f) The Membership Secretary shall provide a report detailing the current situation and numbers of the Club's Membership.
- g) The Events Coordinator(s) shall provide a Club activities report from the previous year.
- h) Other members of the Committee shall submit reports as delegated by the Committee.
- i) General Secretary shall discuss and announce the voting results.
- j) The Club will decide on any other resolutions which may be duly submitted to the General Meeting.
- k) Other matters raised in writing for discussion at the General Meeting will be added to the agenda.

10 - EXTRAORDINARY GENERAL MEETINGS

- a) An Extraordinary General Meeting (EGM) may be convened by direction of the Committee or by a requisition to the Committee stating the business for which the EGM is required and signed by not less than ten current Club Members, who will be required to attend the EGM.
- b) Notice of the business to be discussed will be made available to the Membership, at least seven (7) days in advance of the EGM.

11 - MEETING PROCEDURE

- a) When Members wish a matter to be placed on the agenda for a General Meeting or Extraordinary General Meeting, the text of such matters shall be received by the Committee chair at least fourteen (14) days before the date of such meetings, so that it may be included in the agenda.
- b) This agenda shall be made available to the Membership for information, at least seven (7) days before the date of the General Meeting or Extraordinary General Meeting.
- c) Anyone can attend, but only Members are allowed to participate in General Meetings.
- d) Every Member with a right to participate in these meetings may exercise one vote for each resolution. At all such meetings, a majority of votes decides a resolution.
- e) The minutes of each LCUK Committee meeting, GM and EGM shall be made available to the membership for information and discussion upon request.

12 - INDEMNITY AND INSURANCE

- a) Subject to paragraph (b) below, a relevant Committee member may be indemnified out of the company's assets against:
- b) any liability incurred by that Committee member in connection with any negligence, default, breach of duty or breach of trust in relation to the Club; and
- c) any other liability incurred by that Committee member as an officer of the Club.
- d) This section 12 does not authorise any indemnity which would be prohibited or rendered void by any provision of the Companies Acts or by any other provision of law.
- e) The Committee may decide to purchase and maintain insurance, at the expense of the Club, for the benefit of any relevant Committee member in respect of any relevant loss.
- f) In this section 12:
 - a "relevant Committee member " means any Committee member or former Committee member.
 - a "relevant loss" means any loss or liability which has been or may be incurred by a relevant Committee member in connection with their duties or powers in relation to the Club.

13 - GENERAL

- a) Any notice required to be given to any Member may be sent to that Member's last notified email address.
- b) All Members participating in LCUK events and activities shall be subject to the laws of the land and the act of participating in an organised event does not exclude participants and their vehicles from complying with the requirements of any Road Traffic laws.
- c) To the maximum extent permissible by law, the Club excludes any liability for any injury or damage arising at any LCUK event or activity. Owners are responsible for ensuring the safety of their vehicle and passengers at all times.
- d) Any photographic, text or other material donated to LCUK for use in any LCUK published medium shall remain the copyright of the originator, but LCUK shall be granted free licence to use said material in perpetuity.
- e) Any processes procedures or systems developed on behalf of the club shall become the intellectual property of the club.
- f) Lamborghini Club UK shall be covered by an adequate public liability insurance policy. This policy shall be renewed annually.
- g) Should the need arise, an EGM shall be called to wind up Lamborghini Club UK. After all liabilities have been met, any remaining assets shall be donated to a charity or charities decided by the Membership present at the EGM.